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|    |                                                            | <p>Moving plaintiffs shall separately and electronically file and serve the proposed Third Amended Complaint (Ex. A to moving papers), <b>within five court days</b>. Separate e-filing is required to ensure the pleading is properly indexed in the court’s electronic filing system.</p> <p><b>The Case Management Conference scheduled for August 13, 2026, is CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12.</b></p> <p>Moving plaintiffs shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 3. | <p><b>Powell vs. Daryani</b></p> <p><b>25-01526978</b></p> | <p><b>1. Demurrer to Amended Complaint</b><br/> <b>2. Case Management Conference</b></p> <p>Defendants Bijan Daryani, Asad Daryani, and Cars 4 Movie, LLC’s demurrer to plaintiff Christopher Powell’s First Amended Complaint [FAC] is SUSTAINED, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)</p> <p>The demurrer on grounds of uncertainty is OVERRULED. (Code Civ. Proc., § 430.10, subd. (f).) The FAC is not “so incomprehensible that a defendant cannot reasonably respond.” (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695, internal quotes omitted; see also <i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135 [“We strictly construe such demurrers because ambiguities can reasonably be clarified under modern rules of discovery”].)</p> <p>Further, moving parties’ arguments as to the propriety of punitive damages and/or rescission should have been addressed by a motion to strike, not a demurrer. (<i>Kong v. City of Hawaiian Gardens Redevelopment Agency</i> (2002) 108 Cal.App.4th 1028, 1047 [“a demurrer cannot rightfully be sustained ... to a particular type of damage or remedy”]; <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682 [“demurrer does not lie to a portion of a cause of action”].)</p> <p><u>1<sup>st</sup> C/A: breach of contract.</u></p> <p>This cause of action fails to state sufficient facts. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) The FAC fails to allege how the contract, the attached “EBay Motors Vehicle Purchase Agreement,” was breached. Rather, the factual allegations only address fraud / concealment. (FAC, ¶ BC-2; “Combined Attachments: BC-1, BC-2, FR-2a, FR-2b and FR-3a,” ¶¶ 4-6.)</p> |

Further, the FAC fails to allege sufficient facts to show how the individual defendants are liable for alleged breach of the “EBay Motors Vehicle Purchase Agreement,” which is in the name of defendant Cars 4 Movie, LLC. While agency allegations are considered ultimate facts (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 437), an agent is ordinarily not liable on a written contract executed on behalf of a disclosed principal, absent bad faith which is not alleged (*Area 51 Productions, Inc. v. City of Alameda* (2018) 20 Cal.App.5th 581, 603, FN 13). Further, the alter ego allegations are insufficient. (“Combined Attachments: BC-1, BC-2, FR-2a, FR-2b and FR-3a,” ¶ 1; *Robbins v. Blecher* (1996) 52 Cal.App.4th 886, 892 [alter ego elements]; *Vasey v. California Dance Co.* (1977) 70 Cal.App.3d 742, 749 [“The allegation that a corporation is the Alter ego of the individual stockholder is insufficient to justify the court in disregarding the corporate entity in the absence of allegations of facts from which it appears that justice cannot otherwise be accomplished;” internal citations omitted].)

2<sup>nd</sup> cause of action: fraud / concealment.

This cause of action fails to state sufficient facts. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [misrepresentation elements], 645 [specific pleading required]; *Roddenberry v. Roddenberry* (1996) 44 Cal.App.4th 634, 665-666 [concealment elements]; *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1472 [concealment requires specific pleading].)

The FAC fails to specifically allege “the names of the persons who made the allegedly fraudulent representations,” “their authority to speak,” to whom they spoke, or the means of representation. (*Lazar v. Superior Court, supra* at 645.) Presuming plaintiff is referring to the representations in the attached online ad by defendant Cars 4 Movie, LLC [which is not clear, as required for specific fraud pleading], there are no facts alleged as to who made the representations on behalf of this entity defendant. (*Id.*)

As to concealment, there are insufficient facts alleged to show a duty to disclose by the individual defendants, for the reasons discussed above; however, duty is sufficient as to the alleged seller, defendant Cars 4 Movie, LLC. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337 [buyer / seller relationship may give rise to duty to disclose]; *Wilkins v. National Broadcasting Co.* (1999) 71 Cal. App. 4th 1066, 1082-1083 [concealment may constitute actionable fraud where the seller is under a duty to disclose facts which materially affect the

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|    |                                                             | <p>desirability of the product and which seller knows are unknown to the buyer].)</p> <p>There are also no facts alleged supporting scienter, as to either misrepresentation or concealment. Rather, these elements are alleged as a conclusion only. (FAC, ¶¶ FR-2(c), (d) [misrepresentation], FR-3(c) [concealment].)</p> <p>The remaining elements of this cause of action appear sufficiently alleged. (FAC, ¶¶ FR-2 [misrepresentations], FR-3(a) [concealment], FR-5 [reliance], FR-6 [proximately caused damages]; “Combined Attachments: BC-1, BC-2, FR-2a, FR-2b and FR-3a,” ¶¶ 4, 5 [misrepresentations, concealed facts], 6 [reliance], 7 [proximately caused damages].)</p> <p><b>Plaintiff is granted 21 days to file a Second Amended Complaint.</b></p> <p><b>The Case Management Conference is CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12.</b></p> <p>Moving Defendants to give notice.</p>                                                                                                                                                                                                                                                                                                                      |
| 4. | <p><b>Sanchez vs. Newhall</b></p> <p><b>25-01532093</b></p> | <p><b>1. Demurrer to Complaint</b><br/> <b>2. Motion to Strike Complaint</b><br/> <b>3. Case Management Conference</b></p> <p>Defendants Forrest Newhall Jr., Colleen Newhall, and Teresa Torre’s Demurrer to the Complaint is OVERRULED in part and SUSTAINED in part. The Special Demurrer for Uncertainty is OVERRULED.</p> <p><b>Special Demurrer for Uncertainty</b></p> <p>A party may demur to a complaint or a cause of action on the ground that the pleading is “uncertain.” (Code Civ. Proc. § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by “the inept pleader” are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (<i>Saunders v. Cariss</i> (1990) 224 Cal. App. 3d 905, 908.) A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (<i>Fenton v. Groveland Community Services Dept.</i> (1982) 135</p> |